

fault thereof that the said lands, tenements and hereditaments, or a competent part thereof, may be sold for the satisfaction thereof, and the proceeds of such sale applied accordingly; and for that purpose that all proper directions be given and accounts taken.

(And for further relief; pray subpoena)

We now come to the forms in Schedule B, under the last clause of the above Order 2. In the numerous cases not provided for by these forms, the pleadings should be drawn on the same principles, and any such departure from them as would lead to unnecessary prolixity may subject a party to the extra costs, occasioned thereby. If a "more detailed statement" is "necessary to the due development of the case," it should still be set forth according to the rules here observed, the leading principle of which appears to be, to reduce the pleading as nearly as possible to the concise form of a declaration at law.

By a person entitled to the specific performance of an agreement for the sale or purchase of any property, seeking such specific performance.

IN CHANCERY.

To the Honourable, &c.

Humbly complaining, &c., your orator, &c., that by an agreement, dated the — day of —, and signed by C. D., the defendant hereinafter named, the said C. D. contracted to buy of the said A. B. (or to sell him) certain freehold property (or leasehold, or other property, as the case may be) therein described or referred to, for the sum of £—; and that he has made or caused to be made to the said C. D. an application specifically to perform the said agreement on his part, but that he has not done so; to the end therefore, that the said agreement may be specifically performed, and for that purpose that all proper directions may be given, he, the said A. B., hereby offering to perform the said agreement specifically on his part.

(And for further relief; pray subpoena.)

The above is taken from the form already referred to, under the English Claim Order.

The following forms are not after any English Order.

For the specific performance of a parol agreement partly performed.

IN CHANCERY.

To the Honourable, &c.

Humbly complaining, &c., your orator, &c., that on

Forms of bills
in cases not
provided for by
Order I. of
January, 1851.

1.
Bill for specific
performance.

2.
Similar to
English Order.